

ORDER SHEET

IN THE LAHORE HIGH COURT, BAHAWALPUR BENCH,

BAHAWALPUR

JUDICIAL DEPARTMENT

I.C.A.No.01 of 2014.

Anwar-ul-Haq Shahid Bari

Versus

T.M.A,etc.

<i>S. No. of order/ Proceeding</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of parties or counsel, where necessary</i>
--	--------------------------------------	---

*20.01.2014. Mr Jamshaid Akhtar Khokhar Advocate for
the appellant.
Mr. Saeed Ahmad Choudhary, AAG.*

*The instant I.C.A has been filed by the present
appellant against the order dated 17.12.2013
passed by Single Bench of this Court according to
which writ petition No.4468/2010 of the present
appellant was disposed of.*

2. *Brief facts of the case are that the present
appellant filed a writ petition No.4468/2010 titled
“Anwar-ul-Haq Bari VERSUS T.M.A, etc before the
Honourable Single Bench of this Court stating therein
that the petitioner was appointed as Sanitary
Inspector in the year 1986 by the respondent
department and was most senior and qualified to
hold the post of Sanitary Inspector in the year
1991, Government of the Punjab was pleased to issue
Notification in which the post of Sanitary Inspector
was upgraded from BPS-8 to BPS-11 and
nomenclature was also changed from Sanitary
Inspector to Chief Sanitary Inspector. The said
notification was issued in the light of Notification
No.SOV/2-48/86-P-II dated 27.12.1987 and the post
was upgraded vide Notification dated 03.03.1991.*

The Tehsil Municipal Administration City Bahawalpur on 31.05.2008 through Resolution No.15 recommended for the grant of BPS-11 to the appellant due to his long service. The present appellant stated in paragraph No.8 of the writ petition that he had moved application to the District Co-Ordination Officer, Bahawalpur being Controlling Authority of the Municipal Administration which was rejected without any cause and the District Co-Ordination Officer also referred the matter to Secretary, Local Government for decision on merit. The present appellant further stated in paragraph No.10 of the writ petition that he had also filed a separate appeal to Secretary, Local government & Rural Development, Punjab in which request was made for the award of emoluments of BPS-11 and other pensionaries benefits on 10.08.2010.

3. *The writ petition of the appellant was disposed of on 17.12.2013 with the following order:-*

“During the course of arguments and after perusal of the comments filed on 2.10.2010 by the DCO/respondent No.2 it is borne out that the appeal filed by the petitioner has been forwarded to respondent No.3. It is felt appropriate to direct that copy of this writ petition alongwith all the annexures be sent to respondent No.3, who shall treat the same as written submissions on behalf of the petitioner and dispose of the appeal filed by him within a month from the receipt of this order and obviously after affording opportunity of hearing to concerned parties”.

4. *At the very outset, learned AAG raised an objection that the instant I.C.A in view of section 3 sub-section 2(Proviso) of Law Reforms Ordinance 1972 is not maintainable as appellant has availed the remedy of appeal by filing appeal to Secretary, Local Government and Rural Development Punjab as provided under section 190 of the Punjab Local*

Government Ordinance 2001 against the order well mentioned in paragraph No.10 of the writ petition of the appellant.

5. *On the other hand, learned counsel for the appellant in reply to objection raised by the A.A.G regarding maintainability of I.C.A before Division Bench submitted that although appellant had filed a separate appeal to the Secretary Local Government and Rural Development Punjab but the same does not debar the appellant from filing I.C.A against the order of Single Bench of this Court.*

6. *We have heard the learned counsel for the appellant as well as AAG on the point of maintainability of this I.C.A.*

7. *Section 3 sub-section 2 (Proviso) of Law Reforms Ordinance 1972 is hereby reproduced for reference:-*

“Provided that the appeal referred to in this sub-section shall not be available or competent if the application brought before the High Court under (clause (1) of Article 199 of the Constitution of the Islamic Republic of Pakistan) arises out of any proceedings in which the law applicable, provided for at least one appeal(or one revision or one review) to any Court, Tribunal or authority against the original order”.

8. *Section 190 of the Punjab Local Government Ordinance 2001 is also reproduced for reference:-*

“Any person aggrieved by an order passed by a Local Government or its functionaries in pursuance of this Ordinance or the rules of bye-laws made there under may appeal to such authority in such manner and within such period as may be prescribed”.

9. *Admittedly, the appellant had filed an appeal to the Secretary Local Government and Rural Department Punjab which is provided in view of section 190 of the Punjab Local Government*

*Ordinance 2001 before filing writ petition No.4468 of 2010, hence the instant I.C.A in view of section 3 sub-section 2 (proviso) of Law Reforms Ordinance 1972 is not maintainable and is dismissed **in limine.***

(Altaf Ibrahim Qureshi)
Judge

(Sadaqat Ali Khan)
Judge

Shabbir.

Approved for Reporting.